

RECRUITMENT AND SELECTION

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POLICY OWNER: CHRO Policy Unit

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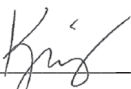
SUPERSEDES: 40.010.02 (2025)

PAGE NUMBER: Page 1 of 12

REFERENCE/AUTHORITY:

- ORS 240.145(3), 240.012, 240.013, 240.015, 240.145, 240.195, 240.250, 240.306, 240.309, 240.425, 240.570, 659A.030, 659A.036, 659A.043, 659A.046, 659A.052

APPROVED SIGNATURE:



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Statement

Oregon state government is committed to a recruitment and selection process, including reemployment lists and various appointment types resulting in the retention of a diverse, qualified and competent workforce.

Applicability

All employees where not in conflict with an applicable bargaining agreement, excluding temporary employees except where noted.

Forms

- [Recruitment Toolkit](#)

Definitions

Refer to State HR Policy 10.000.01, Definitions.

Policy

1. Recruitments

- a. A person shall follow the job posting instructions and submit an official Oregon state government application within the designated time-period. Agencies have the right to exclude or disqualify applicants for failing to follow job posting instructions and timelines.
- b. Hiring agencies may require a resume and/or cover letter to be attached to the initial application but shall not require additional materials. Additional materials such as transcripts, responses to essay questions, or work samples may be requested from applicants who advance in the selection process.
- c. Hiring agencies shall not require an applicant to possess or present a valid driver license unless the ability to legally drive is an essential function of the job or is related to a legitimate business purpose.
- d. Hiring agencies shall not request or require an applicant's age, date of birth, nor attendance or graduation dates of an educational institution prior to completing an initial interview. If there is no initial interview, then agencies shall not request such information prior to making a conditional offer of employment. Exceptions are permitted only when age, date of birth, attendance or graduation dates are required to:
 - i. Affirm that the applicant meets bona fide occupational qualifications; or
 - ii. Comply with any provision of federal, state or local law, rule or regulation.

An agency may only require the specific information needed to validate qualifications or compliance under i. or ii. above.

- e. Any recruitment and selection process shall be competitive, unbiased, and of such content as to assist in determining an applicant's qualification to perform the work. This may include but is not limited to inclusive job

postings and diverse interview panels which reflect the community being served.

- f. Hiring agencies shall post a job opportunity for a minimum of seven calendar days when filling vacancies through an internal and/or external recruitment process using the Oregon Jobs page.
 - i. Job postings shall include all requirements provided in State HR Policy 10.000.01 Definitions.
- g. Hiring agencies shall conduct thorough reference checks to verify statements contained in an application or statements made in an interview and secure further information concerning the applicant's qualifications and suitability prior to making an offer of employment. Reference checks include contacting other state agencies and public employers. An agency may make decisions about whether to hire a candidate if material information is obtained that affects the applicant's experience, education, training, or suitability.
- h. Hiring agencies shall develop a process for responding to applicants' concerns regarding the selection process.
- i. Criminal background checks may not be conducted prior to the interview stage of hiring, except for positions in law enforcement and criminal justice.
- j. Hiring agencies shall not seek an applicant's salary or pay history and shall not screen applicants or set compensation based on current or prior pay.

2. Types and Order of Applicant Lists

- a. Lists shall be used to facilitate the recruitment and selection process in the order listed below or as prescribed by the applicable collective bargaining agreement when making any appointment, except for appointments made as part of workforce adjustments to prevent layoff.
 - i. Injured Worker List
 - 1. This list shall be used as the first priority and shall consist of employees with compensable work-related injuries or illnesses that occurred while employed pursuant to ORS 659A.052.
 - 2. The employee must not have waived reemployment rights in accordance with state or federal law or an applicable collective bargaining agreement.

3. The hiring agency shall follow State HR Policy 50.020.03, Reinstatement and Reemployment of Injured Workers, when an injured worker is on the list for the same classification or salary range the agency is filling.

ii. Agency Layoff List

1. Individual agencies shall establish a list, as the second priority, and shall follow the exhaustion of the first priority list.
2. The list shall consist of employees who completed initial trial service with Oregon state government and separated due to layoff.
3. Employees are placed on the list by the classification at separation or demotion within the category of service specified in ORS 240.195.
4. The term of eligibility on the list is two years from date of layoff or demotion.
5. An individual shall be removed from the list upon their second refusal of a job offer unless an agency layoff plan allows for additional refusals or when the employee is returned to an equivalent position from layoff. This does not include temporary or limited duration work.
6. The agency shall select among employees on the list of the same classification and category of service of the position to be filled.
7. Any appointments from the list shall be made consistent with the agency's layoff plan.

iii. Statewide Layoff List

1. Use of this list shall occur after exhausting the first and second priority lists.
2. An employee may request placement on the list via their agency's human resources office for the classifications for which they qualify, at an equal or lower salary range number.
3. This list shall consist of permanent employees in either the management or classified unrepresented service who

separated due to layoff or unclassified service employees terminated from state service due to reduction in force.

4. Employees on the list must have completed initial trial service, if applicable.
 5. The term of eligibility on the list is two years from the date of layoff.
 6. An individual shall be removed from the statewide layoff list upon their second refusal of a job offer or when a person accepts a position and has returned to work. This does not include temporary or limited duration work.
 7. A hiring agency shall consider and interview those employees who meet the qualifications and special qualifications, if any, for the position.
- b. After fulfillment of the requirement in 2.a., other eligible lists may be used when making an appointment.
- i. Transfer List: Refer to State HR Policy, 40.045.01 Transfers
 - ii. Internal List: A list of agency employees or state employees who apply and are qualified for the position.
 1. Active temporary employees may be included where not in conflict with an applicable collective bargaining agreement.
 2. Separated employees who were active and submitted an application prior to the application close date, unless separated for cause.
 - iii. External List: A list of applicants seeking employment with the state who are qualified for the position.

3. Use of Applicant Lists

- a. The order in which applicant lists are used is outlined in section 2. of this policy.
- b. When a vacant position is to be filled, an agency, when appropriate, shall create an eligible list on the state's recruitment system of record.

- i. The hiring agency shall develop and document a valid screening process to select from the eligible list the most qualified applicants to move forward in the selection process.
 - ii. The hiring agency shall consider education, work experience, and screening factors consistent with the State HR Policy 40.055.04, Candidate Preference in Employment.
 - iii. The selection process must include assessment and verification of an applicant's qualifications and may include screening application materials, interviewing, skills testing, and reference checking. The hiring agency may determine the selection stages and screening methods appropriate for the position.
 - 1. Agencies may disqualify or not move an applicant forward in the selection process for the following reasons (this is not an exhaustive list):
 - a. Evaluation or assessment determines the applicant does not possess the job qualifications;
 - b. Applicant falsifies statements in the selection process;
 - c. Applicant does not pass required pre-employment checks
 - c. Applicants on an eligible list may be placed on a related eligible list of the same classification at the agency's discretion.
4. Types of Appointments. An agency head shall use one of the following methods to appoint persons to state service.
- a. Academic year appointment.
 - i. Appointing authorities may extend employment into the period between academic years.
 - ii. Employees appointed to positions designated as academic years shall be placed on leave without pay during the period between academic years. Time spent on such leave shall constitute service for purposes of computing vacation accrual rates, continuous service dates, with appropriate adjustment, and any other purpose when state service time is computed, except for the period of trial service.

- iii. A person accepting an academic year appointment shall be informed of the conditions of the appointment and shall acknowledge their acceptance of the appointment in writing.

b. Direct Appointment.

- i. An agency head has the delegated authority and discretion to make direct appointments.
- ii. Criteria for direct appointment:
 - 1. A competitive recruitment is conducted and results in no suitable candidates as determined, documented and certified by the agency head. The recruitment shall be completed within the previous six months; or
 - 2. The appointment is made consistent with a court or administrative order, consent decree, court or administrative settlement, or negotiated tort claim settlement; or
 - 3. The position requires special or unique skills at the professional level. Special or unique skills at the professional level are those which require specialized knowledge typically acquired from college coursework at the bachelor's degree level or beyond; or
 - 4. The position being filled is critical to agency operations and there is a demonstrated need to fill the position quickly

iii. Minimum Qualifications

- 1. The individual to be direct appointed meets the minimum qualifications of the classification; or
- 2. The individual is appointed as an underfill and will meet the minimum qualifications of the position within 12 months of the appointment.

iv. Each direct appointment shall be documented.

- 1. The documentation shall be retained for a minimum of three years.
- 2. The documentation shall cite the applicable policy criteria, results of any open competitive recruitment, the qualification

of the individual selected, and the agency appointing authority authorization signature.

- c. Limited Duration Appointment. Refer to State HR Policy 40.025.02 Limited Duration Appointments.
- d. Limited Competitive and Non-Competitive Appointments.
 - i. Recruitment for positions using employment programs serving people with disabilities is not limited by using a list. A limited competitive selection process through such employment programs may be used to facilitate employment of persons with disabilities;
 - ii. Recruitment for the economically disadvantaged and non-competitive appointments is limited to those classifications listed in this policy unless otherwise authorized by the agency. The hiring agency shall:
 - 1. Open a job listing with the field office of the Employment Department nearest the location of the vacancy when the recruitment is open to the public.
 - 2. Make affirmative efforts to supplement referrals to create a diverse pool of candidates.
 - 3. This process may be used for economically disadvantaged persons who meet the following criteria:
 - a. Clients of the Oregon Department of Human Services;
 - b. Clients of Juvenile Justice Division programs funded by the state.
 - 4. The agency shall use the following criteria when reviewing appointing authority or designee requests for additions to the list:
 - a. The classification requires minimal or no requisite knowledge or skills;
 - b. It is impractical to develop an examination; and
 - c. It is impractical to follow the normal recruiting process.
 - 5. An appointment is made to designated classifications comprised of unskilled or semi-skilled positions for which

there are minimal or no qualifying knowledge or skills, no screening or no ranking. Where more than one candidate is referred, the hiring manager may use an interview process to select the most qualified person.

iii. Limited-competitive appointment may also be used to limit the competition for appointment to non-competitive classes to those persons who meet the criteria. Limited-Competitive and Non-competitive Appointment Classifications:

1. 0001, Supported Employment Worker
2. 0100, Student Office Worker
3. 0101, Office Assistant 1
4. 0150, Student Professional/Technical Worker
5. 0321, Public Service Representative 1
6. 0405, Mail Services Assistant
7. 1105, Traffic Survey Interviewer
8. 3769, Experimental Biology Aide
9. 4101, Custodian
10. 4116, Laborer/Student Worker
11. 4125, Litter Patrol Worker
12. 4137, Liquor Distribution Worker
13. 14403, Transporter
14. 6605, Human Services Assistant 1
15. 6701, Student Human Services Worker
16. 6750, Group Life Coordinator 1
17. 8125, Agricultural Worker
18. 8201, Forest Nursery Worker 1
19. 8202, Forest Nursery Worker 2
20. 8235, Student/Professional Forester Worker

21. 8253, Forest Lookout

22. 8254, Wildland Fire Suppression Specialist Entry

23. 8263, Wildland Fire Dispatcher Entry

24. 8340, Fish and Wildlife Technician Entry

- e. Permanent Appointment.
- f. Seasonal Appointment.
- g. Temporary Appointment. Refer also to State HR Policy 40.025.01, Temporary Appointments.
 - i. Active temporary employees are permitted to apply to jobs posted on the internal job board and may be considered for internal job opportunities where not in conflict with an applicable collective bargaining agreement.

5. Alternative Methods for Filling Positions.

- a. All positions shall be filled at the budgeted salary range level and classification.
- b. An appointing authority may use the following alternative methods of filling positions to provide for situations such as employee development, job sharing, and short-term transitioning:
 - i. Crossfill: a position may be crossfilled to a different classification with an equal salary range number providing an update to establish or modify the position pending in the state's human resources information system.
 - ii. Non-budgeted position:
 - 1. A non-budgeted position may occur for any of the following situations:
 - a. To cover an employee on leave for any reason when a temporary appointment is not appropriate and a vacant position does not exist to address the workload need;
 - b. Short-term transition of employees into impending vacant positions for purposes of training;

- c. Establishing position pending the budget system update;
 - d. When approved or directed by the Budget and Management Section to address budget issues;
 - e. Job share.
 - 2. Employees in non-budgeted positions shall meet the minimum qualifications of those positions and be appointed according to applicable recruitment and appointment policies or collective bargaining agreements.
 - 3. The non-budgeted method of filling positions shall not be used to permanently increase legislatively authorized staffing levels.
 - 4. Agencies are responsible for monitoring non-budgeted positions within their agency.
 - 5. Agencies are required to document the reason for the non-budgeted position and the plan to resolve the non-budgeted position in the state's human resources information system.
- iii. Underfill:
- 1. Appointment may be from an eligible list or as a direct appointment.
 - 2. A position may be underfilled with an individual in a lower salary range number and classification when there is a reasonable expectation the employee will meet the minimum qualifications of the allocated level of the position within 36 months of an appointment made from an eligible list or within 12 months of a direct appointment.
 - 3. Upon meeting position qualifications and performance requirements, the employee shall be changed to the allocated level of the position.
 - 4. An employee underfilling shall be advised of the requirement necessary to qualify for the position they are underfilling.
- iv. Overfill: An overfill may occur for any of the following situations:
- 1. Establishing position pending the budget system update

2. When approved or directed by the Budget and Management Section to address budget issues
6. Agency head recruitment efforts shall be conducted by the Chief Human Resources Office. The agency may request to conduct the recruitment with the oversight of the Chief Human Resources Office.
7. Retention of recruitment records shall be maintained in accordance with [OAR 166-300-0040](#), Personnel Records.